

**ALABAMA DEPARTMENT OF REVENUE
ADMINISTRATIVE CODE**

**CHAPTER 810-3-27
INDIVIDUAL TAXPAYERS' RETURNS**

810-3-27-.08

**Acceptance, Monitoring, And Revocation Of
Acceptance Into The Alabama Individual Modernized
E-File Program For Electronic Return Originators
And Transmitters.**

(1) SCOPE - This rule explains the requirements for electronic return originators and transmitters (not to include software developers and transmitters - See Rule 810-3-27-.07) to obtain and sustain active approval to serve as an Alabama Department of Revenue electronic filing agent in order to transmit returns through the Alabama Individual Modernized E-File Program.

(2) Electronic return originators and transmitters accepted by and in good standing with the Internal Revenue Service (IRS) Electronic Filing Program are automatically accepted into the Alabama Electronic Filing Program. This does not include software developers. They must complete the approval process with the Alabama Department of Revenue (See Rule 810-3-27-.07).

(3) Electronic return originators and transmitters accepted into the Alabama Electronic Filing Program serve as agents of the Alabama Department of Revenue, and must comply with the requirements of the program as stated in the Alabama Handbook for Modernized e-File (MeF) for Individual Preparers (Publication AL4163).

(4) The Alabama Department of Revenue will conduct random monitoring visits with Electronic Return Originators and Transmitters to verify that the requirements of the Alabama Electronic Filing Program are being met.

(5) The Alabama Department of Revenue reserves the right to revoke the acceptance of an electronic return originator or transmitter for cause. Failure to comply with the guidelines set forth in Alabama Handbook for Modernized e-File (MeF) for Individual Preparers (Publication AL4163) is considered cause.

(6) Any of the following can result in the revocation of an electronic return originator's or transmitter's acceptance into the program:

- (a) Conviction of a criminal offense under the revenue laws of any state or of any offense involving dishonesty, or breach of trust.

(b) Failure to file timely and accurate tax returns, both personal and business.

(c) Failure to pay personal tax liabilities or business tax liabilities.

(d) Failure or refusal to effect corrective action as required by the Alabama Department of Revenue.

(e) Other facts or conduct of a disreputable nature that would reflect adversely on the Alabama Electronic Filing Program.

(f) Unethical practices in return preparation.

(g) Suspension by IRS.

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Statutory Authority: Code of Ala. 1975, §§40-2A-7(a)(5), 40-30-6.

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